

name of her mother or father.

After this demurrer was filed, Plaintiff filed a 377.32 declaration. In this declaration, Plaintiff declares that she is Melody's granddaughter. She states that there is no pending proceeding for administration of decedent's estate. Plaintiff also states that she is one of Melody's successors in interest (Code of Civil Procedure § 377.11) and that no other person has a superior right to commence this proceeding. (Jones dec. ¶¶2-5.) Plaintiff attaches a copy of Melody's death certificate, which lists Melody's son Joshua Jones as the informant. (Jones dec. ex. 1.)

In reply, Defendant argues that the 377.32 declaration is insufficient. The attached death certificate shows that Melody had a son. Defendant argues that the declaration does not address whether Melody's son would have rights here and does not state if there are any other living relatives.

As to the section 377.32 declaration, Plaintiff has not included sufficient facts in her declaration to show that she is the successor in interest to Melody's estate. Plaintiff states that she is Melody's granddaughter, but has not addressed if Melody has any other living heirs, such as children or grandchildren, or has otherwise shown how Plaintiff is the successor in interest.

As to the wrongful death claim, Plaintiff is Melody's granddaughter. Plaintiff has not alleged that her parent, Melody's child, is deceased. Nor has Plaintiff alleged facts showing that Plaintiff would be entitled to the property of the decedent by intestate succession. Further, Plaintiff should allege whether there are any known heirs who might have a wrongful death action under section 377.60, such as Joshua Jones.

As to the remaining claims, the Court finds that Plaintiff's section 377.32 declaration is insufficient and the FAC does not allege sufficient facts to show that Plaintiff has standing to bring any of the claims here. The demurrer is sustained with leave to amend for Plaintiff to file an amended complaint and an amended section 377.32 declaration that addresses the standing issue.

8. 9:00 AM CASE NUMBER: C24-03076
CASE NAME: DEJA JONES VS. JOHN MUIR HEALTH
***HEARING ON MOTION IN RE: STRIKE FIRST AMENDED COMPLAINT**
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Defendant John Muir Health's motion to strike portions of the amended complaint is **granted**. Plaintiff is given leave to amend as to the allegations in paragraph 46 and 47.

Defendant asks to strike (1) allegations that "Plaintiff is entitled to treble damages under Civil Code § 3345 as a result of Defendants' unfair business practices" in cause of action four (FAC ¶83) and (2) allegations related to 22 CCR section 72311 in paragraph 46 and 47.

As to the first issue, Defendant argues that Plaintiff cannot get damages under Civil Code section 3345 for an unfair competition claim under Business and Professions Code section 17200. Civil Code section 3345 allows for the trebling of a fine, or a civil penalty or other penalty in actions

brought to protect senior citizens. In *Clark v. Superior Court* (2010) 50 Cal.4th 605 the California Supreme Court held that trebling under Civil Code section 3345 is not permitted in a private action for unfair competition under section 17200 since restitution is the only monetary remedy available. (*Id.* at 608, 614.)

Plaintiff acknowledges the ruling in *Clark*, but argues that here she is seeking Civil Code section 3345 damages for the entire complaint. Yet, Defendant's motion addresses the allegation for treble damages included in the claim for unfair competition.

The Court finds that treble damages are not permitted in an unfair competition claim under *Clark*, and therefore the Court grants Defendant's request to strike them. Whether Plaintiff has some other avenue for obtaining treble damages is not before the Court at this time.

As to the second issue, Defendant argues that John Muir Center in Concord is an acute care general hospital and that the allegations regarding portions of the California Code of Regulations in paragraphs 46 and 47 relate to skilled nursing facilities, which are irrelevant here.

Defendant has included requests for judicial notice showing that John Muir Center in Concord is licensed by the State of California as a general acute care hospital. Defendant's requests for judicial notice are granted.

Plaintiff admits in her opposition that Defendant is an acute care hospital and states she can amend to state the applicable regulations against hospitals like Defendant. Plaintiff also argues that the California Code of Regulations provisions for skilled nursing facilities are necessary to the evidence against Defendant, but has not explain why those regulations are relevant here.

The Court finds that regulations regarding skilled nursing facilities in paragraphs 46 and 47 are irrelevant here where the defendant is an acute care hospital. The Court grants the motion to strike with leave to amend.

9. 9:00 AM CASE NUMBER: C24-03339

CASE NAME: STYLE HOUSE-HOME STAGING, DESIGN & CONSULTING LLC VS. DE LUNA DESIGN AND BUILD LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO WRITTEN DISCOVERY
FILED BY: STYLE HOUSE-HOME STAGING, DESIGN & CONSULTING LLC**

TENTATIVE RULING:

Plaintiff moves to compel further answers to Special Interrogatories, Form Interrogatories, and a Request for Production of Documents. It further seeks sanctions in the form of a \$1,400 attorney fee. The moving papers document that the requests were propounded, responses were served, and plaintiff attempted to meet and confer about the adequacy of the responses, unsuccessfully. As to the specific requests at issue: As to the special interrogatories, for each disputed response (16, 18, 19, 20, 21, 22, and 32), the response asserts that a list of information will be provided, but it has not been provided. As to Form Interrogatory 9.2, again documents are promised, but have not been provided.